Ferrero India Private Limited (IMSOFER DIVISION) 8th Floor, Tower–3,World Trade Centre, Survey NO.1,Kharadi,Pune 411014, Maharashtra, India. Phone:+91 20 67196000 Fax:+91 20 67196050
VAT Reg NO: 27465208692V Dt.06.08.2008
CST Reg NO: 27465208692C Dt.06.08.2008 PAN No:AAACF8110B
ECC No: AAACF8110BEM001 GSTIN: 27AAACF8110B1Z8

Purchase order

PO number/date/Doc.Type/Description
7008015001 29.09.2020 Z108 Technical Materials

Ms NIHVA TECHNOLOGIES PVT LTD
Sameer Plaza, First Floor, G-Block
411019 Thermax Chowk, Pune
Teleph./Fax: +91 +91-8551091333 / +91-8551091333
Your vendor number with us: 123352
GSTIN: 27AAECN0437H1ZM

UP-Order: 3000
Buyer: Minal SURVE
Telephone: 02112 662100
E-mail: DLL-IND67-Technical-Procurement@owa.ferrero.com
Purchasing Reference: Narayan Jahagirdar
02112-662200 narayan.jahagirdar@ferrero.com
Preq number - Requisitioner
426596742 / Ghadage Amar

Please deliver to:
Ferrero India - Baramati Plant
Ferrero India - Baramati Plant
Plot No F-13, MIDC
413133 BARAMATI, PUNE
Delivery date: 21.10.2020

Terms of delivery:
at Ferrero Baramati Plant
Terms of payment: 30 days invoice date

Currency: INR

1. Refer your quotation no. SQT.20-21.2369R dated 29th Sep20 and subsequent discussion on it.
2. Invoicing address should be strictly as:
Ferrero India Pvt. ltd.
F-13 MIDC, Baramati-413133, Dist.: Pune.
3. Prices: Inclusive of transportation, lodging & boarding charges.
4. SERVICE INVOICE ALONG WITH SERVICE REPORT DULY SIGNED BY USER TO BE SUBMITTED WITHIN ONE WEEK FROM THE DATE OF THE SERVICE TO THE USER DEPARTMENT.
4. Payment: within 30 days of services availed and invoice submission.
All payment and taxation related queries to be first addressed to Kapil.POKHARNA@ferrero.com.
5. Validity for PO is 6 months. If you want to supply after this, please obtain consent of Ferrero India.
6. Environment and Energy Performance is one of the evaluation criteria for Procurement.

Vendors to send copies of invoices (PDF format) with PO no. mentioned on the invoice directly to the central email ID (accountspayable.india@ferrero.com). PO should also be mentioned on the subject line of the email. Any invoice not received on the centralized email ID will not be accepted.

Item	Material	Description	Order qty.	Unit	Price/Unit	Net Value
00010		*Dock Leveller Lip Modification Charges*				
	Price schema	Price/Unit	Rate	Rate/Unit	Units	Condition Value
	Gross Price	18,000.00	INR	1	AU	18,000.00
	GST					3,240.00

Continue

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Item	Material	Description	Order qty.	Unit	Price/Unit	Net Value
		Dock leveller lip modification charges-(Warehouse location) Scope of work : • Dismantaling of Dock Leveler Lip from Dock leveler • Taking Lip to Local fabricator for modification • reducing Lip size of Dock Lip • Refixing Dock Lip to Dock Leveler • Reinstallation of Dock Leveller Transport required for modification is inclusive in it .				

Position contains the following services:

Service	Description	Order qty.	Unit	Price/Unit	Net Value
	Dock leveller lip modification charges	1.000	ST	18,000.00	18,000.00

Total net value INR: 18,000.00

Continue

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Release strategy	Date	10.10.2020	13.10.2020
	Electronically Signed		
IY-3C	by	N.JAHAGIRDAR	P.POTNIS

TERMS & CONDITIONS TO THE PURCHASE ORDER

1. Object
1.1. These terms and conditions shall govern the related purchase order ("Purchase Order") for the purpose of the supply from supplier ("Supplier") to Ferrero India Private Limited ("Ferrero" or "Purchaser") of the raw materials and semi-finished goods ("Goods") as better described therein. The Supplier and Purchaser are individually referred to as the ("Party") and collectively to as the ("Parties"). Ferrero shall from time to time and on the business need basis, raise the Purchase Order(s) and it is expressly agreed and acknowledged by the Parties that these terms and conditions shall form an integral part of the Purchase Order and the parties agree to be bound by Purchase Order including these terms and conditions. It is further agreed by both the Parties that in the event of any dispute on the interpretation or likewise, the terms and obligations mentioned in this agreement shall prevail over the Purchase Order and/or the Invoice.
1.2. No terms or conditions other than those agreed pursuant to clause 1.3 endorsed upon, delivered with or contained in the Supplier's quotation, or in the acknowledgement of receipt or in the acceptance of a Purchaser Order, or in any invoice or other document issued by the Supplier shall form part of this Purchase Order and the Supplier waives any right which it otherwise might have to rely on such terms and conditions.
1.3. Should the Parties intend to apply to this Purchase Order any term which derogate from or are in addition to those stated herein ("Special Terms"), they have to include such Special Terms in a separate written document signed by both the Parties, making express reference to their intention to apply such Special Terms in addition or derogation of what stated under the Purchase Order.

2. Delivery
2.1. The quantities of Goods to be delivered, the dates and the places of such deliveries, to be performed under any Purchase Order may be requested by the Purchaser to the Supplier from time to time under any specific call off ("Call-Off") through the way and format in use by the Purchaser at that time, as well as according to the planning methodology agreed by the Parties.
2.2. Time for delivery of the Goods pursuant to the Purchase Order and Call off is of the essence. The Supplier shall promptly notify the Purchaser of any delay which may occur with respect to the delivery and shall endeavor to take any corrective actions necessary with a view to minimizing the consequences of its failure. The Supplier, under each delivery, shall provide the Purchaser with all the transportation, customs, health and analysis documents and declaration of conformity, in compliance with any applicable law, regulation, statute, code, rule, decree or ordinance in respect of the performance of the Supplier's obligations under the Purchase Order ("Regulatory Requirement"), as well as in compliance with any specific documents required by the Purchaser from time to time.
2.3. Unless otherwise set forth by the Parties according to the modality as per clause 1.3 above, title and risk on the Goods shall pass from the Supplier to Purchaser in accordance with the delivery terms as per Incoterms 2010 indicated under the Purchase Order.
2.4. Should the Supplier fail to deliver the Goods in compliance with the time of delivery and/or the quantity agreed, Purchaser may, at its own discretion and without prejudice to any additional rights: (i) require the immediate fulfillment of the Purchase Order, in whole or in part; and/or (ii) procure elsewhere at any time the Goods at Suppliers cost and risk, with the sole obligation of notifying the Supplier. Purchaser is entitled to reject the Goods accompanied by a delivery note, should such a note not comply with any Regulatory Requirement, as well as missing the proper indication of the date and number of the Purchase Order.

3. Non Conformity
In case of Goods' defectiveness or non-conformity in respect to this Purchase Order, any Specification (as defined below in clause 4(b)), Regulatory Requirements as well as any other provision of the Purchaser Order (hereinafter referred to as "Defectiveness" or "Non-Conformity(ies)"), the Purchaser will have the right, upon written notice non-exceeding the 20 (twenty) calendar days from the discovery, require the Supplier to promptly and without delay remedy the ascertained Non-Conformity at Supplier's exclusive costs and expenses. Should the Supplier fail to remedy such an ascertained Non-Conformity, then the Purchaser will be entitled to directly remedy such Non-Conformities and to debit to the Supplier any and all the relevant costs. In the above circumstances the Supplier shall: (i) bear any costs for repair or replacement of the Goods in such a way to be in compliance with this Purchase Order and/or Regulatory Requirements and (ii) reimburse any further cost, charge or expense incurred by the Purchaser in relation to the repair, modification or replacement of the Goods affected by the Non-Conformity. All the above, without prejudice to further rights of the Purchaser granted by any applicable Regulatory Requirement.

4. Representations and Warranties
The Supplier hereby warrants and represents that:
(a) the Goods (i) will be free from any defect in material and workmanship; (ii) will fit for their intended purpose of human consumption and (iii) will be free and clear of any security interests, liens, encumbrances, claims and charges or liabilities whatsoever;
(b) by performing any Purchase Order, should such a Purchase Order has as object the supply of raw materials, the Supplier has assessed and accepted the specifications of the Goods, set forth under the Raw Material Qualification Specifications and/or Raw Material Specification Sheet, these latter referred to under the applicable Purchase Order ("Specifications").

5. Pricing & Invoicing
5.1. Price of the Goods is set out under the Purchase Order. Supplier's invoice shall be in compliance with any Regulatory Requirement, and shall contain any information necessary and/or requested by Ferrero in order to check the Goods.
5.2. The payment shall be made in the currency specified in the Order and shall not constitute or be deemed as acceptance of Ferrero of the Goods.
5.3. Ferrero will be entitled to set off any amount due at any time to the Supplier against any amount due, for whichever reasons, by the Supplier to Ferrero.

Continue

FERRERO INDIA PVT LTD (IMSOFER DIVISION) **Ms NIHVA TECHNOLOGIES PVT LTD**

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6. No Assignment
6.1. The Supplier shall not sell, transfer or assign to any third party any credit the Supplier may have toward the Purchaser for the payment of any Good to be supplied to the Purchaser under any Purchase Order.
6.2. The Supplier shall not assign and/or subcontract any Purchase Order, or any part thereof, and/or any rights or obligations thereunder, save expressly authorised in writing and in advance by the Purchaser. In any event, Supplier shall remain responsible for the performance of every Purchase Order, and it shall grant Purchaser to apply to sub-contractors contractual terms and condition coherent and in compliance with the Terms and the Purchase Order.
6.3. The Purchaser may, with prior written notice to Supplier, at any time, assign any Purchase Order, in full or in part to any of its Affiliates.

7. Indemnity & Insurance Coverage
7.1. In accordance with any applicable Regulatory Requirement, the Supplier shall keep the Purchaser indemnified in full against all liabilities, loss, damages, injury, costs and expenses awarded against or incurred or paid by the Purchaser as a result of a Defectiveness.
7.2. To such purposes and thereafter in accordance with any applicable Regulatory Requirement, the Supplier shall maintain, in respect of this Purchase Order, all necessary insurance coverage, including product liability insurance against any risk of safety defects related to the Goods and providing the Purchaser with evidence of the existence of such policies of insurance upon request from time to time.

8. Confidentiality
8.1 The Supplier shall treat as confidential all non-public information, particularly technical and business information, whether written or oral, that it receives from the Purchaser relating to this Purchase Order to which it gains access or which it otherwise obtains during the negotiation or execution of this Purchase Order. The Supplier shall use such confidential information only for the purpose of Purchase Order(s) and shall give access only to its employees who need to have access to such Confidential Information in order to carry out the purposes of this Purchase Order.
8.2 Upon Purchaser's request, all the documentation containing confidential information disclosed by the Purchaser to the Supplier shall be returned to the Purchaser or destroyed.
8.3 The non-disclosure obligations as per clause 8.1 and 8.2 above shall survive the termination of this Purchase Order.

9. Termination by Material Default
The Purchaser shall have the right to terminate the Purchase Order if the Supplier commits a material default of any of its undertakings under this Purchase Order, provided that prior to termination the Purchaser shall notify the Supplier of the default in writing, stating a reasonable time, in any event not exceeding 30 (thirty) calendar days from the date the notice is received, within which the Supplier shall have to remedy said default. The Purchaser shall be entitled to terminate immediately this Purchase Order by giving written notice to the Supplier in case of breach of Ferrero Code of Business Conduct as per clause 12.7 below.

10. Force Majeure
10.1. In the event that either Party is prevented from performing all or part of its obligations under this Purchase Order by an unforeseeable event which is beyond the control of such Party making it impossible to perform its obligations hereunder (hereinafter referred to as "Force Majeure"), such as, by way of example, war, revolution, embargo, riot, civil disorder, sabotage, accident, act of God, or order or act of an authority (including, without limitation, administrative action, rule, regulation or legislation), such Party shall not be liable for the non-performance of such obligations during the continuance of the Force Majeure event and for all consequences caused by and resulting from such force majeure event.
10.2. The suspension of the performance of this Purchaser Order due to a force majeure event shall be limited to the period of time during which the effects of the force majeure event continue. The Parties hereto shall undertake their best efforts in order to minimize the consequences relating to such Force Majeure event and especially of the delays incurred.

11. Change of Control
11.1 "Change of Control" means any of the following:
(i) Transfer or allotments of shares of a company giving a new person the direct or indirect holding of a fraction of the capital that gives to the new person a majority of the voting rights at the general meeting of such company;
(ii) When a new person holds directly or indirectly a majority of the voting rights in a company by virtue of an agreement entered into with other partners or shareholders;
(iii) When a new person becomes entitled to determine directly or indirectly the decisions taken at a company's general meetings through the voting rights it holds; or
(iv) When a new person becomes directly or indirectly entitled to appoint or dismiss the majority of the members of a company's administrative, management or supervisory.
11.2 In case of Change of Control of the Supplier, or whether the Supplier is subject to reorganization, amalgamations, or other restructuring operations (to such purpose, the Supplier shall inform the Purchaser forthwith of any fact or circumstance related to any variation of its share capital relevant and/or any modification of its corporate structure), the Purchaser is entitled to terminate this Purchase Order, upon 30 (thirty) calendar days prior written notice.

12. Miscellaneous
12.1. Applicable Law and Settlement of Disputes
These Terms and any Purchase Order shall be subject to and construed according to the substantive law of the India. Any disputes arising under or in connection with these Terms and/or any Purchase Order shall be finally settled by the competent Court at Pune, India.
12.2. Remedies
Each right or remedy of the Purchaser under these Terms and/or any Purchase Order is without prejudice to any other legal remedy of the Purchaser whether under this Term and/or the Purchase Order or not. All rights and remedies of the Parties, or either of them, hereunder and under any Purchase Order shall be in addition to all other legal rights and remedies belonging to them and the same shall be deemed to be cumulative and not alternative to such legal rights and remedies
12.3. No Waiver of Rights
Any Purchaser's indulgence on a temporary basis towards Supplier in respect of the performance of the Supplier, or failure of the Purchaser to enforce any of the provisions of this Purchase Order, shall not be construed as a waiver or otherwise prejudice any of the Purchaser's rights under this Purchase Order.

Continue

FERRERO INDIA PVT LTD (IMSOFER DIVISION) **Ms NIHVA TECHNOLOGIES PVT LTD**

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12.4. Severability
The inoperativeness of one or several provisions of this Purchase Order does not affect the validity of the remaining provisions. In such case a provision is applicable which meets best legal and economic aim of the inoperative provision. This does not apply in case complying with this Purchase Order would constitute unreasonable hardship for one or both of the Parties.
12.5. Independent Supplier
The Supplier represents and warrants that the Supplier, as well as all of its employees and permitted sub-Suppliers (collectively “Personnel”) are, under the performance of this Purchase Order, independent operator(s) and not employees of Ferrero. The Supplier shall be entirely and solely responsible for its acts and the acts of the Personnel, including, but not limited to, for (i) the payment of any and all compensation and benefits due to the Personnel and (ii) reporting, withholding and remitting to any applicable governmental entity all income and employment taxes attributable to such compensation and benefits. When on facilities or premises of Ferrero, all Personnel shall comply with Ferrero’s applicable premises policies and procedures, as communicated by the Purchaser to the Supplier from time to time.
12.6. Entire Agreement
This Purchase Order, incorporating the Special Terms, if any, represents the entire agreement between the Parties on the subject matter hereof and supersedes all prior discussions, agreements and understandings of every kind and nature between them. No modification of this Purchas Order neither of the Special Terms shall be effective unless in writing and signed by Parties, as well as any cost or price not therein provided will have to be expressly agreed/approved in writing and signed by both Parties.
12.7. Ferrero Code of Business Conduct
The Supplier hereby declares to know and accept and agrees to comply with the Ferrero Code of Business Conduct which shall apply to the Purchase Order. The Supplier represents that the Goods to be supplied have been obtained and transformed in full compliance with any Regulatory Requirement, including but not limited to any applicable regulatory requirements in terms of prohibition of using child labour, starting with its worst forms, and of all forms of slavery, human trafficking, forced or compulsory labour and prison labour in accordance with the International Labour Conventions (ILO), UN Conventions and the Human Rights Declarations.
12.8. Inspection
During the performance of the Purchase Order by the Supplier, the Purchaser shall have the right to access, directly or through its authorised representatives, the Supplier’s premises at its own expenses and during normal business hours, in order to verify and assess that the Supplier properly complies with any and all its obligations, as stated herein.

Purchaser Code of Business Conduct is available to download at: http://www.ferrero.com

If the Supplier is an Italian Company, the Supplier hereby expressly approve and agree, in accordance with and pursuant to Article 1341 of the Italian civil code, the Articles hereinafter set forth:
1.2, 2.2, 2.3, 3, 4, 5.1, 5.2, 5.3, 8, 6.2, 7.1, 9, 12.2, 12.7

FERRERO INDIA PVT LTD (IMSOFER DIVISION) **Ms NIHVA TECHNOLOGIES PVT LTD**

.....	..... Date: .....